Public Perceptions of the Supreme Court's Shadow Docket on Social Media

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Abstract

Recent terms noticed a prominent increase in the Court's reliance on its emergency docket powers, often referred to as the shadow docket. This power, while not a new phenomenon, has raised concerns as the transparency of the justices' decision-making on important legal disputes is obscured by a process that shirks the Court's conventional procedures in favor of single-justice dispositions with minimal legal justification. We leverage data mining, sentiment classification, and supervised machine learning techniques to examine the public discourse instigated by this unique decision-making behavior on social media platforms like Twitter. While these decisions raise important transparency concerns, our results ultimately suggest that they do not serve as primary points of contention in the public discourse. Rather, much like public responses to signed opinions reached through the Court's conventional procedure, perceptions are instead motivated by underlying conditions of ideological congruence.

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Introduction

During the confirmation hearing of Ketanji Brown Jackson in March 2022, Senator Amy Klobuchar queried then-nominee Jackson about a concerning behavior that has become increasingly normalized by the modern Supreme Court. The Court's norms and procedures prescribe a predictable and systematic decision-making process that includes a considerable degree of intra-justice deliberation and involvement from the parties involved in the dispute. However, Klobuchar drew attention to the growing popularity of decisions reached through the Court's *shadow docket*, a process that is especially disconcerting because it effectively abandons those procedural norms. The term is used colloquially to refer to all orders rendered beyond the plenary docket.[1] These orders consist of applications for emergency relief and summary judgment in legal disputes that have yet to be granted review. While the process itself is not especially new, these decisions have gained notoriety as they are often bereft of oral arguments or accompanying opinions to justify the Court's decision-making. These concerns, among others, can justifiably explain why legal scholars have increasingly labeled this process as among the most vague and least transparent in American government (e.g., Baude 2015; Vladeck 2020).

Transparency in government decision-making is paramount to ensuring public trust, but the Court's preference for seclusion often relegates its most intimate deliberations to secrecy. Chief Justice William Rehnquist justified the Court's position as a matter of competing interests. While the public good might be supported by disclosing what happens behind the scenes, the Court will ultimately suffer as an institution because any of the candor or "half-formed or ill-

[1] Apart from the term *shadow docket*, the process has likewise been colloquially referred to as the *emergency docket*, the *midnight docket*, and the *lightning docket.*

conceived ideas… will be later held up to public ridicule" (1977, p. 565). In essence, Rehnquist argues that the Court's non-disclosure of its private dealings serves to protect them more than providing a degree of transparency that inevitably invites public criticism. Yet, Rehnquist's argument hinges on the comparative transparency of the Court's decision-making to the other branches, as well as of courts in history more generally. Unlike many agencies whose deliberations are scarcely publicized, "…all of the business of the Supreme Court of the United States comes in the front door and leaves by the same door. This disposition of every appeal, argued case, application for stay, and any other petition to the Court is made a matter of public record as soon as the disposition occurs" (p. 564).

But what happens when this expectation is broken? Decisions reached through the shadow docket theoretically skirt the Court's most basic standards for its transparency by interceding in legal disputes before they have sufficiently navigated the appellate process. Even more, these cases are often decided by a single justice and provide little-to-no accompanying opinions to justify their decision. Our research translates conventional theories of public responses to Supreme Court decision-making to examine the effects of the shadow docket. We rely on a novel dataset of opinions by individuals on social media to observe how the public structure their rhetorical behaviors in response to these unique decisions in real time. More generally, we seek to understand how the public responds when government actors make decisions utilizing procedures or outcomes that shirk the status quo standards of transparency.

Owing to the existing literature, we theorize that ideological congruity with the Court's decision-making serves as the basis for support or opposition to shadow docket orders. Barring the underlying transparency concerns, the shadow docket nonetheless represents an extension of the Court's discrete decision-making, and it would be reasonable to expect social media users to

leverage their responses through a partisan lens. However, we expect that procedural critiques emanating from the docket's heightened lack of transparency would be most prevalent among those who are ideologically incongruent with the shadow docket outcome. Our results ultimately dissuade us from the latter expectation. Instead, we find that content-specific discussions of the Supreme Court in periods coinciding with shadow docket orders are largely devoid of procedural critiques. The rhetorical behaviors of individual users are guided largely by ideological congruity, even when the decision-making process of the shadow docket shirks procedural norms.

We begin by detailing the Supreme Court's use of the shadow docket as well as its more general relationship with public opinion. Then, we examine past literature on government transparency and public response and discuss our expectations based on an individual's characteristics as well as case characteristics to predict the rhetorical sentiments (i.e., contextual feelings or moods) of responses. Next, we incorporate a supervised machine learning strategy to systematically examine the rhetorical sentiments of approximately 115,000 tweets discussing the Supreme Court in periods coinciding with decisions handed down from the shadow docket. We then move past focusing solely on the rhetorical sentiments by using a Latent Dirichlet Allocation (LDA) topic model and qualitative analysis approach to investigate the content of the tweets.

The Shadow Docket

The shadow docket is composed of all decisions made by the Court that are not part of its traditional plenary docket, which follows the norms of deciding cases with oral arguments and a final published opinion. This other docket, the shadow docket, includes, but is not limited to, orders concerning (often expedited) petitions for certiorari, stays of execution or lower court

orders, and other orders dealing with attorney discipline or case paperwork. In the past, the docket has been primarily used for certiorari petitions as well as procedural orders, most prevalently as it relates to printing appendixes of cases or moving oral argument dates. Since the shadow docket has been used primarily for procedural orders and rarely for policy purposes, it has historically been paid little attention by the media, political actors, and the public (Baude 2015; Felleman and Wright 1964). However, observers have not only noted a persistent increase in the justices deferring to the docket in recent years but most notably as it relates to decisions on legal questions with definitive policy implications (Vladeck 2019, 2020). As one might imagine, this behavior has not only drawn more attention to the Court's decision-making but with it a considerable degree of criticism and controversy (Murphy 2021).

When shadow docket decisions are made, there are no timeline restrictions or procedural requirements, nor are there any obligations for the justices to provide written justifications. Historically, the Court’s decision-making procedures have been entirely predictable. In short, litigation will traverse to a court of last resort, a party will file a petition for a writ of certiorari, multiple rounds of briefs and amicus filings will follow if that petition is granted, and a signed decision will be offered in the months following oral arguments. Decisions on orally argued cases often begin to trickle down in small numbers during the Winter months, and generally coincide with two months following the first sitting in October. As such, it is surely not unprecedented for the Court to release a few decisions prior to the holiday season. However, most of the Court's releases are often relegated to the Spring, and even more so in the final months of the term. Yet, during the 2020 term, the growth of the shadow docket has ostensibly altered this expectation. During the 2020 term, for example, the Court offered several orders in pending litigation concerning regulations arising from the COVID-19 pandemic and voting rules

in the upcoming presidential election. Not only were there several orders given at a time but these decisions were released just prior to midnight and offered no accompanying written justification (Liptak 2020). These decisions disregard the norms of the Court and remove almost any chance individuals have to "...monitor the internal workings and performance of the organization" as such is required for transparent actions (Grimmelikhuijsen et al. 2013; Meijer 2013). It could be argued that this lack of transparency, coupled with the Court's already-limited window of action, could provide ample occasions to stir public criticism.

The Court and Public Opinion

While the Supreme Court may differ from the other branches of government and their need to please voters, it nonetheless has no enforcement mechanism and relies upon the public to accept decisions. Thus, maintaining legitimacy in general, as well as support for specific decisions, is essential for the Court. If the public believes the Court is making decisions illegitimately or decisions they do not agree with, the public can threaten non-compliance. Not only are the decisions of the Court important influences on public opinion, but the perceptions of the Court displayed by fellow political elites are important for framing the public's views of its institutional legitimacy (Bartels and Johnston 2020, 2013; Gibson and Nelson 2015; Nelson and Gibson 2019).

Scholars have examined how individuals shape their views of the Court and their decisions on the merits, though the recent emergence of the shadow docket as a pivotal component of the Court's procedural decision-making means that very little work has been done to examine its effect on public discourse. Prior literature has shown that even in cases that follow the normal process and provide for discussion among media and in the public discourse, public knowledge of the Court – including both decisions, as well as its norms and procedures –

remains exceptionally low (Gibson, et al. 2017). However, this lack of knowledge has historically benefitted the justices as the symbolism of the Court often instigates a generally positive view of its institutional legitimacy (Gibson and Caldeira 2009). This framework has often been cited as a means to explain why *diffuse* (i.e., institutional) support of the Court has traditionally remained satisfactory, even as the public spars over its *specific* decisions on individual cases (Caldeira and Gibson 1992; Gibson and Nelson 2015).

Even so, scholars have drawn on evidence showing a decrease in public opinion reflective of an individual's ideological congruence with the Court's decisions in particularly salient cases that accompany significant social or political consequences (Bartels and Johnston 2013; Gibson et al. 2017; Gibson and Nelson 2015; Johnson and Martin 1998; Nelson and Gibson 2020). In many respects, this follows a conventional social choice arrangement, wherein individuals appear more likely to support decision-making that satisfies their predisposed social and political beliefs (Zilis 2017). Yet, this framework is ostensibly rooted in positional interests. That is, support or opposition is contingent on weighing ideological congruence as a metric of fairness, rather than considering decisions as a reflection of procedural fairness. The shadow docket in particular raises an additional degree of substantive questions for members of the public to consider. Namely, apart from whether someone views the decision itself as ideologically or politically correct, does a greater departure from conventional norms and transparency contribute to this calculus of potential support? Our work does not contend that support or opposition to decisions reached through the shadow docket is mutually exclusive to perceptions of ideological or procedural fairness, but rather an amalgamation of the two.

We draw on this contention by noting that recent scholarship has shown how fairness in the decision-making process itself is readily on the minds of the public. In essence, if the process

of the Court is viewed as fair and correct, then support for the Court subsequently increases (Armaly 2021; Caldeira and Gibson 1992; Gibson and Nelson 2015; Tyler and Rasinski 1991). Yet, the accumulation of research on this topic is limited to questions pertaining directly to decisions reached through the Court's traditional mechanisms. To this point, scholars have had few opportunities to directly observe public discourse in response to apparent departures from the conventional procedure, let alone one that theoretically raises additional transparency concerns. Examining public responses to shadow docket decisions provides us with the occasion to explore these unique circumstances.

Theorizing Public Response

We examine public responses to decision-making from the Supreme Court's shadow docket through the lens of discourse on the Twitter social media platform between May 2020 and April 2022. Specifically, we employ a novel dataset that considers online rhetoric as a reflection of rhetorical sentiments (i.e., attitudes and tone) by developing and implementing a supervised machine learning approach using Naïve Bayes. To frame discourse online, we expect that the public will respond to this nontransparent decision-making based on two concurrent sets of factors. First, we expect that public discourse will generally emerge as the result of an individual's predisposed perceptions and their congruence with the decisions. However, owing in large part to the uniqueness of the shadow docket, we also expect that these procedural deviations and potential for transparency will instigate greater disdain among the public.

As noted above, we expect the leading influence on the public's response to nontransparent government actions like the utilization of the shadow docket will be determined by individual characteristics. Prior studies have examined public discourse on Twitter in response to changes in transparency by government actors and found that individuals responded

uniquely on social media and focus on a variety of connected topics (Neu et al. 2020). This provides evidence that different types of individuals are using social media to discuss various aspects of an issue. Others have also found that the frequency of an individual's use of social media also influences the rhetorical sentiments of an individual's response to changes in government transparency (Porumbescu 2017). The way in which individuals respond and how frequently they respond sets them up for a role in their online community. An individual's role in their community can influence their response to nontransparent government decisions.

The most important individual factor to influence rhetorical sentiments is the ideology or opinion of the individual in contrast to the outcome of the government action. It is likely rhetorical sentiments will be mitigated by the outcome of the decision (Bartels and Johnston 2013, 2019). For example, portions of the recent confirmation hearing of Justice Ketanji Brown Jackson were devoted to discussions of the docket itself. Senator Amy Klobuchar, a Democrat, devoted much of her questioning period to the docket and tailored her discussion to the reality that this process and resulting orders appear to disproportionately favor the conservative bloc of justices and the conservative political preferences. It is perhaps unsurprising then that Senator Klobuchar consistently framed these arguments using hostile rhetoric by choosing to focus considerably on the potential consequences that this process might have on faith in the Court's capacity to adjudicate beyond the veil of political influences. However, subsequent statements by the Judiciary Committee's Republican members, while not overly in support of the docket, framed it as a routine process of the Court's decision-making (Erskine 2021). This dynamic draws on a fairly simple premise that people will exercise negative rhetorical framings more frequently when decisions are contradictory to their views (Arceneaux, et al. 2012; Porumbescu 2017).

However, we recognize that the uniqueness of decisions reached through the shadow docket represents a considerable deviation from the Court's traditional norms and procedures. As noted previously, these orders often accompany considerable political intrigue and rarely provide significant written justification. Combined, they provide a potential harbinger for concerns that question both the Court's procedural fairness, as well as the transparency of its decision-making. It would be reasonable to expect that these realities are not lost on the public, especially as much of the contemporary literature developing in this field routinely point to these concerns (Vladeck 2019, 2020). An abundance of historical anecdotes can be drawn to demonstrate how the public's feelings towards their government can deteriorate as a result of reticent or hasty decision-making. Even if the members of the public might support non-transparent actions by their government, their feelings might be soured by a lack of transparency. For much of contemporary history, the justices have been forced to wrestle with these concerns as the Court's procedures are more commonly the result of internal norms and traditions than statutory law. Considering that the shadow docket represents an even greater deviation from the limited transparency already offered by the Court, we expect it will provide an additional layer of consideration for members of the public formulating support or opposition. That is, even if liberal or conservative-leaning individuals might ultimately support the Court's (or an individual justice's) shadow docket order, they might nonetheless use negative rhetorical framings as a result of procedural criticisms.

Yet, we should consider again that much of our understanding concerning the dynamic linking the public to the Court's decisions is rooted in ideological congruence. While procedural concerns being important enough to deter individuals who would otherwise support the Court's decisions is certainly possible, we expect that these concerns are more likely to emerge among those disenfranchised. That is, we expect those who disagree with the Court's shadow docket

orders to be more likely to employ rhetoric detailing procedural criticisms. The anecdote drawn from the recent confirmation hearing of Ketanji Brown Jackson demonstrates this framework perfectly. While Senator Klobuchar spent much of her time detailing the docket's procedural concerns, her Republican colleagues were reticent to relay similar sentiments. There is no denying that the docket represents a deviation from traditional practices, but the underlying reality of the situation is that these decisions have – as of late – disproportionately favored the Court's conservative bloc. As such, it would be reasonable to surmise that Senator Klobuchar's concerns are born more from a political perspective than an institutional one. We expect these concerns to be relayed to public discourse online, whereby the preponderance of rhetoric framing procedural critiques will be most prevalent among those who would otherwise disagree with the order based on the substantive issues themselves.

Observing Rhetorical Behaviors Online

To observe the public's responses to the Court's usage of the shadow docket, we incorporate a voluminous dataset of social media activity on Twitter posted in the period coinciding with summary judgments and emergency orders between March 2019 and May 2022. Our observation strategy was strategic as it overcomes routine empirical hurdles associated with locating public opinion data specific to the Supreme Court. While prominent pollsters have increasingly focused their attention on the Court, the breadth and substance of available data are noticeably lacking. Notwithstanding the occasional poll, the questions presented to respondents often pertain solely to over-sensationalized political topics and salient decisions. For example, the Court heard arguments in 68 cases during the 2021-2022 term across an array of substantive legal issue areas. Yet, pollsters continued to concentrate on the traditional lines of questioning – i.e., support for the Court as an institution, support of individual justices, and, of course, perceptions of political

influences plaguing the justices' decision-making.[2] In fact, apart from a collection of hyper-salient, term-specific decisions like *Dobbs v. Jackson Women's Health Organization* (2022) and *New York State Rifle & Pistol Association, Inc. v. Bruen* (2022), respondents were rarely asked to consider the Court's discrete decision-making. [3,4]

Even more, while many shadow docket orders have considered salient issue areas like executive actions aimed to curb the COVID-19 pandemic, a distinction between the Court's decision-making and the narrowly tailored aspects of the shadow docket is rarely drawn. Pollsters and popular media appear to spend considerably less time framing shadow docket orders as substantively different from the Court's traditional decision-making. To them, it is effectively business as usual. This leads to a fundamental gap in the data, whereby most of the Court's discrete decision-making is often ignored and survey respondents are rarely asked to consider procedural elements beyond the potential influences of politics. It is perhaps unsurprising then that scholars might view the shadow docket as a concept with minimal awareness because the public is rarely exposed to information that draws attention to the distinction. Yet, moving to social media platforms provides an alternative observation strategy to measure Court-based discourse beyond those confined to narrowly tailored surveys.

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[2] *See* "New Marquette Law School Poll National Survey Finds Approval of the Supreme Court at New Lows, With Strong Partisan Differences Over Abortion and Gun Rights" (Marquette University Law School, September 7-14, 2022) *and* "Positive Views of Supreme Court Decline Sharply Following Abortion Ruling" (Pew Research Center, August 1-14, 2022).

[3] *Dobbs* drew international notoriety by overturning the Court's landmark holdings in *Roe v. Wade* (1973) and *Planned Parenthood v. Casey* (1992), effectively eliminating federal protections for female abortion rights. *See* https://www.supremecourt.gov/opinions/21pdf/19-1392_6j37.pdf

[4] *Bruen* effectively overturned a century of legal precedent in the State of New York by invalidating the state's requirement that applicants for concealed firearm permits demonstrate "proper cause" as a condition for licensure. The ruling gained notoriety as many have seen it as a first step toward dismantling state and local regulations of the second amendment. *See* https://www.supremecourt.gov/opinions/21pdf/20-843_7j80.pdf

Incorporating Twitter data provides the ability to measure a voluminous set of observations on discrete topics like the shadow docket across a broad demographic and in real-time. Considering how prior studies have reinforced the capacity for Twitter to serve as a reliable barometer of public opinion (e.g., Cody, et al. 2015, 2016; Karami, Bennett, and He 2018), we are confident that our data provides valid representations of the public's perceptions.

To collect observations, we rely on the Twitter API v2 to perform search queries based on adjacent features of keywords and other hashtags. We specifically tasked the API with retrieving tweets within a 24-hour period of a shadow docket decision that included the terms *supreme court*, *scotus*, or their hashtag equivalents. After a thorough cleaning to remove unrelated tweets and inauthentic (i.e., bot) accounts, the remaining population was (n=) 119,369 tweets (Figure 1). [5,6] Tasking the API with broad parameters – i.e., collecting all posts that are likely to be discussing the Court – serves to provide a general barometer of the public's perceptions in periods coinciding with a shadow docket order. While we made a concerted effort to remove any unrelated posts, we recognize that the population likely contains a small collection of tweets unrelated to the shadow docket, or at least indirectly related.[7] However, we contend that our approach better serves to represent the public's general perceptions, as opposed to only

[5] To remove unrelated tweets, we employed a matching procedure that eliminated any tweet containing reference to a state supreme court (e.g., *Supreme Court of Georgia*) or a foreign nation (e.g., *India*, *Pakistan*, *Canada*, etc.).

[6] There are a variety of automated procedures for the removal of inauthentic bot accounts (*see* Martini, et al., 2021), but these procedures nearly always depend on analyses of a user's corresponding metadata. As such, we chose to remove any accounts that follow fewer than 50 accounts or maintain fewer than 50 followers.

[7] We draw this assumption from the reality that social media posts sometimes require residual context to frame the user's rhetoric. For example, tweets that include the term *#SupremeCourt* are assumed to be a relevant observation, though the post could likewise include competing for focus language like *#POTUS*. Without proper context, it is difficult to assess which institution bears greater weight.

incorporating a discrete sample of tweets that directly include terms to identify as much. Given that popular media rarely elaborates on substantive distinctions between shadow docket orders and conventional decision-making, we expect that many of the public's responses to the shadow decisions are approached indiscriminately from regular decisions. While the context of a tweet might stem from a decision reached using the shadow docket, we do not want to discriminate our observations to only include those that directly indicate as much. In short, the tweets probably stem from perspectives of shadow docket rulings, even if users do not specifically include discrete identifiers like *shadow docket*. Instead, we feel confident that the randomized release periods of these orders ensure that the bulk of tweets observed within the collection periods is indeed reflective of decisions arising from the shadow docket, rather than of the Court's normal opinion releases.[8]

[8] In essence, while opinion release periods are almost always reserved for 10:00 am on days when the Court is sitting, shadow docket orders are released sporadically on random weekdays and often at random times. The overlap is marginal.

Figure 1. Frequency of Tweets by Month (May 2020-May 2022)

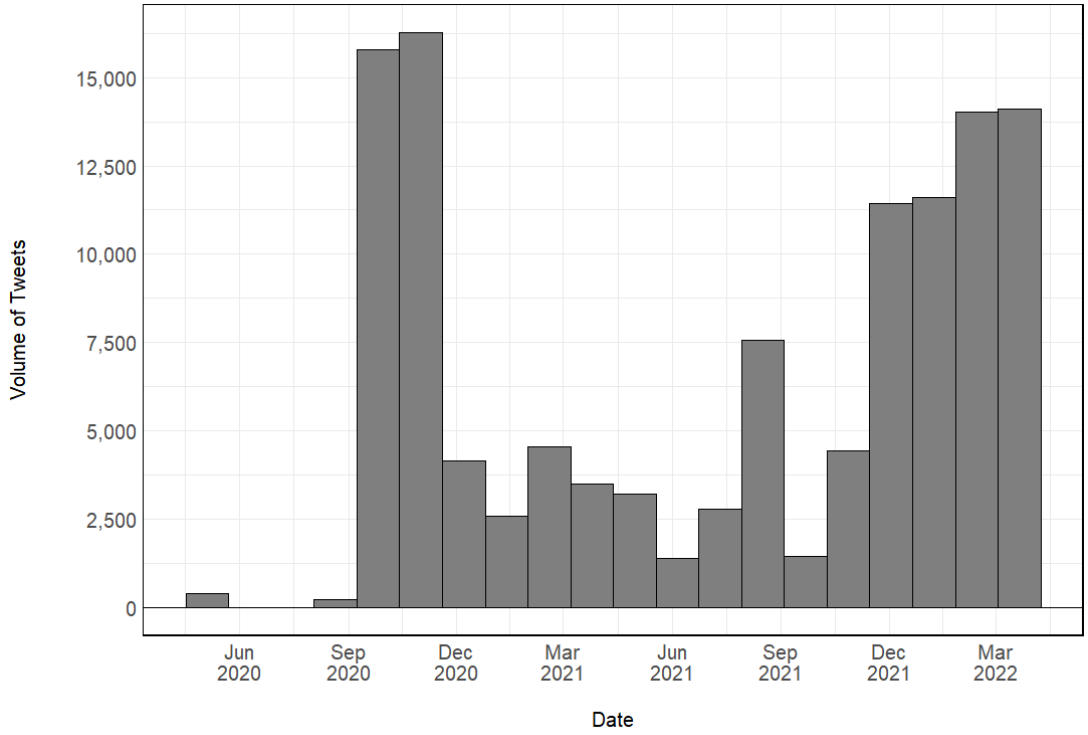

Figure 1 displays the frequency of individual tweets from April 2020 to May 2022.

To measure the contextual substance of the tweets, we leverage a supervised learning procedure using naïve Bayes to derive their positive, negative, or neutral sentiments – i.e., the underlying mood or opinion relayed in a user's rhetoric. The algorithm applies Bayes' Rule to observe the probability of text existing in a categorical classification given an approximate mapping of its distinct features from a training set (Grimmer, Roberts, and Stewart 2022).[9] To train the model, we began by employing a sample set of 200,000 tweets with an even distribution of positive and negative classifications (Go, Bhavani, and Huang, 2009). These tweets were later separated into training and testing sets. We subsequently employed the trained model to classify our dataset of tweets stemming from the shadow docket. This step produced a positive or negative integer

[9] For comparable applications of naïve Bayes to analyses of Court-related Twitter data, *see* Clark, et al. (2018) and Wang, et al. (2014).

representing its corresponding sentiment score. We provide the distribution of scores using a categorical scale in Figure 2.

Figure 2. Distribution of Rhetorical Behaviors by Date (Normalized Scale)

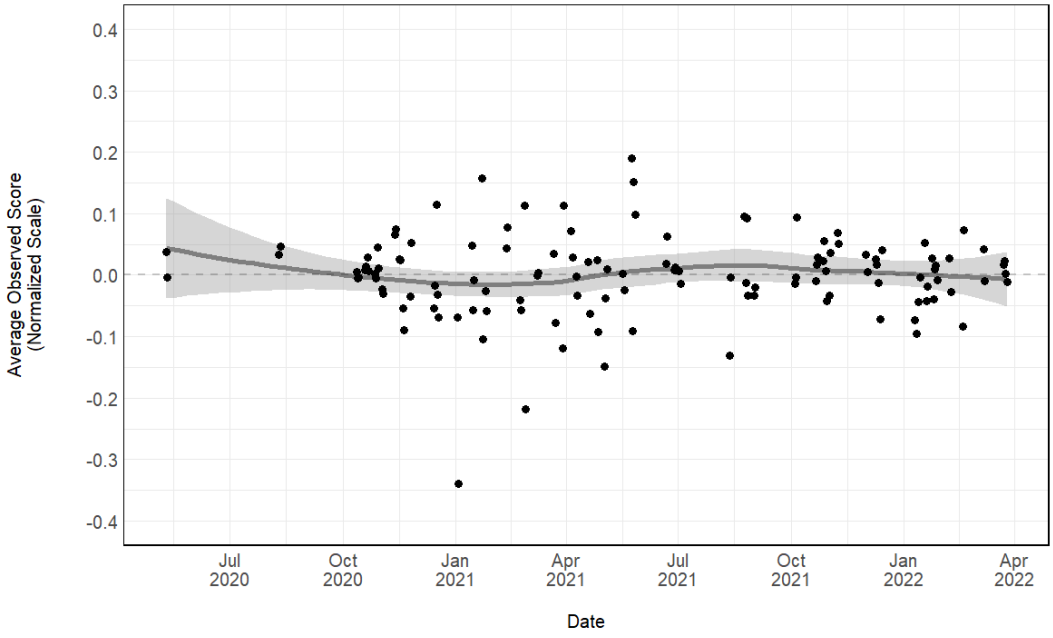

Figure 2 shows the distribution of tweets on a sentiment scale from May 2020- April 2022. Negative numbers indicate a negative sentiment with positive numbers indicating a positive sentiment.

Scaling the Ideological Preferences of Twitter Users

As we have noted, we expect the primary motivation mediating support or opposition to the Court's usage of the shadow docket is an individual user's predisposed ideological beliefs. Research has shown that even devoid of complex knowledge of the Court, individuals can construct sophisticated political opinions (Gibson and Caldeira 2009). Yet, these opinions often reflect inherent political biases towards the justices' discrete decision-making. This notion indicates that public perceptions are largely focused through a partisan lens, as opposed to a critical analysis of a decision's legalistic qualities. However, deriving ideological preferences, or at least a general barometer, of a user's political leanings remains considerably difficult. Unlike

legislators or other political actors whose decision-making behaviors can be scaled alongside like-actors in a common space, deriving a social media user's ideology requires a more creative approach. One potential alternative would be to reference unique identifiers observed within each user's profile. Some users provide cues outlining their political beliefs in their biographies – a character-limited space where users can provide a brief description of their personality and other identifiers. Approaching these descriptions with preconceived notions of how certain terms can act as cues, we could prospectively denote some general conception of their ideologies. For example, users who frequently incorporate terms like *#MAGA* or *#Trump* could be interpreted as more conservative, while others using terms like *#Bluewave* or *#Biden* could prospectively be more liberal. However, this process raises several potential concerns. Namely, the approach is only valid if users provide terms that consistently reflect the same ideological leanings, as well as provide terms that are inferred by researchers to be reliable cues. Even more, this approach assumes that every user – or at least a sizeable majority – discloses any identifying features. Apart from strong partisans, it is unlikely that a user will disclose any significant cues to indicate their political allegiances. With these concerns in mind, it becomes evident a practical alternative is necessary. As such, we instead chose to turn our attention to an approach originally constructed by Barbera (2015).

Barbera (2015) provides an alternative approach for a scaling procedure comparable to those found in the prior literature used to derive ideal points for legislators and other political actors.[10] They contend that a user's social network – i.e., the network of accounts they choose to follow – is reflective of a costly behavior comparable to a legislator voting yea or nay on a bill,

[10] *See* Bailey (2007, 2013); Bonica (2015); Giles, Hettinger, and Peppers (2001); Martin and Quinn (2002); Poole (2005); and Poole and Rosenthal (1985, 2001).

whereby the choice of a user to follow another account is deterministic of that user's utility for doing so. While users can theoretically follow any account on the platform, research has shown that the network of associations users facilitate for themselves is routinely homophilic (Barbera 2015; Conover, Goncalves, et al. 2011; Conover, Ratkiewicz, et al. 2011; Myers, et al. 2014). In essence, users routinely construct online social networks consistent with their personal preferences. Analyzing who a user follows on these platforms can be used to construct an association network, wherein users will be clustered alongside other like users following similar accounts. Barbera (2015) illustrates that by simply denoting the ideological preferences of a collection of elite political users as priors,[11] an analysis of those elites' social networks provides an association matrix of the normal users following those accounts. Additional parameters are included to control for the popularity of the elite users, possibly resulting in several users following the account regardless of their political beliefs,[12] as well as the volume of elite accounts followed by the normal user.[13] Amending Barbera's (2015) original approach with an estimation maximization (EM) framework (Imai, Lo, and Olmsted 2016), the result is a scaled representation of 637 elite Twitter users and their millions of followers in the same common

[11] Note: These elite users included a collection of American political actors (e.g., Congressmen, Governors, and former elected officials) and media outlets. Priors were assigned to the political actors using a dichotomous score of -1 (Liberal) or +1 (Conservative) based on their political party alignments.

[12] For example, former-President Barack Obama maintains one of the largest followings on Twitter. However, the large volume of users following his account is not populated entirely by Democrats. Rather, the account's popularity is likely attributable to Obama's popularity as a former president, rather than him simply being a Democrat.

[13] This control specifically helps to assign special weights to each user to determine whether the volume of elite political or media accounts they follow is reflective of their ideologies or simply because they are active political observers. For example, a user following 100 political accounts across the ideological spectrum will be given a different weight for determining their ideology score compared to another user following 100 accounts with all presenting the same conservative or liberal preferences.

space. These results are used to infer the ideological beliefs of average users. We illustrate this common space in Figure 3.

Figure 3. Ideal Point Common Space

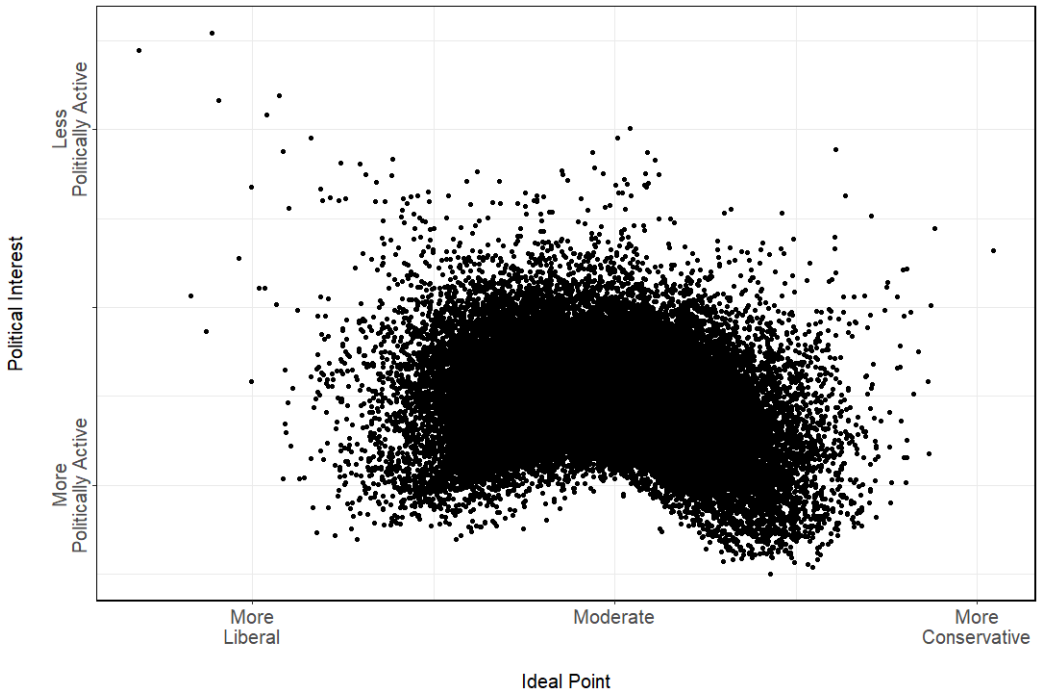

Figure 3 demonstrates the latent ideological preferences of Twitter users using a Network Item Response Theory Framework (Barbera 2015; Imai, Lo, and Olmsted 2016)

Research Design

Using our naïve Bayes classification procedure, we analyzed 119, 369 tweets from 62,841 users posted within 24 hours of a decision emanating from the Court's shadow docket. To observe the multitude of potential factors mediating the support or opposition observed in the tweets, we relied on a collection of linear models. The dependent variable is a continuous measure of a tweet's sentiment score following the Bayes distribution displayed in Figure 2. We first normalized the score to a common scale to generalize the variation. The purpose of concurrent linear models was to assess variation reflective of different clustering strategies. Specifically, we

expect that the variation will be best articulated through clustering user responses by each observation period, as well as by accounting for the decision itself. As such, the first two models are clustered by the ideological preferences of the decision and the observation period of the tweet, while the third model is clustered by both.

However, unlike conventional opinions, inferring whether an order or judgment emerges from the preferences of liberals or conservatives is not always clear-cut. It is difficult to determine an outcome since these decisions do not always consider the merits and the justices are not always compelled to provide a corresponding opinion or disclose how they would personally rule on the application or merits. In essence, an application submitted to an individual justice and eventually referred to the full Court does not assure that the full breadth of reliable context clues will be provided when a decision is rendered. As such, we ultimately frame the conservative or liberal directionality by observing noted dissents. Decisions with dissents populated with more liberals were coded as conservative-leaning, and inversely for liberal-leaning decisions. While this accounted for 84 decisions, the remaining 30 without any noted dissents were coded as ideologically neutral.

To frame our modeling strategy, we incorporated two groups of explanatory variables. The first group directly considers decision-specific conditions. These include three dichotomous measures indicating whether the decision accompanied a written opinion by the Court or justice assigned to the application, whether the decision was classified as an emergency order, and finally if there was a noted dissent. The first term is aimed at broader considerations of transparency. As we have noted, decisions emanating from the Court's shadow docket often face additional criticism due to the lack of an accompanying written justification. We expect that the addition of a written justification might reduce antagonistic responses, insofar as the Court

disclosing its justification similar to a normal proceeding may deter transparency concerns. The second attempts to discern the gravity of the decisions themselves. Considering how many of the Court's shadow docket orders pertain to politically salient issues, we were sure to consider how the presence of an emergency order, apart from a summary judgment, might impact the public's perceptions. The final dichotomous term considers how the perception of disunity among the justices serves to influence the public's response. Prior research has indicated that the public is attuned to factionalism in the Court's rulings, and we expect that the presence of noted dissents will further reinforce antagonism among those disagreeing with the disposition of the order.

We further chose to reinforce the first group with two additional variables. The first is a continuous term indicating the week corresponding with the tweet. The purpose was to ascertain how greater longitudinal dependence on the shadow docket mediates user responses. Vladeck (2020) thoroughly illustrates that perhaps the fundamental concern with the shadow docket is not the rulings themselves, but rather the Court's progressive reliance on it. As we have noted, the Court's willingness to intercede in pending litigation using the shadow docket was historically reserved for only the most necessary circumstances. Yet, beginning during the Trump presidency, the Court has become increasingly willing to loosen those parameters to consider legal disputes beyond the bounds of normal proceedings. We expect that as the prevalence of shadow docket orders becomes more pronounced across our dataset, public responses will become more voluminous and antagonistic. The second and final term in the group of case-specific terms was another continuous variable measuring the total number of noted dissents. Apart from the dichotomous term indicating the presence of a noted dissent, we were sure to account for the breadth of dissents. Especially in situations where a larger contingency of

ideologically alike justices discloses their opposition to the Court's order, we would expect this to be reflected among the user population.

The second group of variables alternatively considers user-level factors. The first was a dichotomous term indicating whether the user is verified on the Twitter platform. Verified users effectively serve in a role as social media elites, and their presence in Court-specific online discourse could be reflective of greater political knowledge thus resulting in stronger signals either positive or negative. The second variable considers the ideological preferences of the users themselves. We specifically converted the scaling of the users from Figure 3 to a binary scale of liberal and conservative users. The purpose of this variable is of course to derive any deterministic influences that a user's perceived ideologies have on their perceptions of the shadow docket, both broadly and specific to each decision. We contend that, akin to how the public approaches decisions reached through normal proceedings, perceptions of the user population will be mediated most importantly by their notions of how the decision aligns with their identities. We provide a summary of the explanatory variables in Table 1.

Table 1. Summary of Variables

Variable	Type	Range	Description
Liberal User	Dichotomous	[0,1]	Indicates whether a user is estimated as being ideologically liberal (Network IRT)
Verified User	Dichotomous	[0,1]	Indicates whether a user is verified on the Twitter platform.
Case Outcome	Dichotomous	[0,1]	Indicates whether a shadow docket order is ideologically liberal or conservative. Measured by referencing noted dissents – e.g., orders with more liberal dissents indicate a preference for conservatives.
Mentions "Transparency"	Dichotomous	[0,1]	Indicates whether a user's tweet included the term *transparency* or any alike word derived from the stem *transpar*.
Week (t)	Discrete	[1,86]	A continuous term indicating the observation period when a user's tweet was posted.
Emergency Action	Dichotomous	[0,1]	Indicates whether the Court's shadow docket order was an emergency action (=1) or summary judgment (=0).
Noted Dissent	Dichotomous	[0,1]	Indicates whether any of the justices formally noted a dissent to correspond with the Court's shadow docket order.
Number of Noted Dissents	Discrete	[0,6]	A continuous term indicating the number of noted dissents corresponding with the Court's shadow docket Order.

Results

The results of our models are provided in Table 2, which reveals only marginal variation in the coefficient outputs contingent on the clustering strategy. We observe how a user's verified status appears to significantly mitigate negative rhetorical behaviors. However, this alone does not sufficiently assert that verified elites behave markedly differently from non-verified users. Instead, we find that a user's preconceived ideological preferences serve as a primary indicator

for framing support or opposition rhetoric online in periods coinciding with shadow docket decisions. Alternatively, the impact of case-specific features observed among decisions appears to be negligible. The exception to this is that the presence of an accompanying opinion to provide legal justification appears to reinforce support, or at least reduce opposition. However, the preponderance of our results leads us to conclude that users, both verified and non-verified, appear conditioned to view these unique decisions politically or ideologically, rather than legalistically.

Table 2. Model Results

	Model 1 Case Direction			Model 2 Date			Model 3 Case Direction & Date		
	Coef.	RSE	Sig.	Coef.	RSE	Sig.	Coef.	RSE	Sig.
Liberal User	-0.009	(0.00)	***	-0.009	(0.00)		-0.009	(0.00)	***
Verified User	0.102	(0.00)	***	0.102	(0.01)	***	0.102	(0.00)	***
Liberal User *x* Verified	-0.056	(0.02)	***	-0.056	(0.01)	***	-0.056	(0.02)	***
Conservative User *x* Liberal Outcome	-0.020	(0.00)	***	-0.020	(0.01)		-0.020	(0.00)	***
Liberal User *x* Liberal Outcome	-0.010	(0.00)	**	-0.010	(0.01)		-0.010	(0.00)	**
Conservative User *x* Mentions "Transparency"	0.019	(0.10)		0.019	(0.15)		0.019	(0.10)	
Liberal User *x* Mentions "Transparency"	0.042	(0.03)		-0.042	(0.09)		0.042	(0.03)	
Week (t)	-0.000	(0.00)		-0.000	(0.00)		-0.000	(0.00)	
Emergency Action (=1)	-0.006	(0.00)		0.010	(0.10)		-0.006	(0.00)	
Noted Dissent (=1)	-0.004	(0.00)		-0.004	(0.01)		-0.004	(0.00)	
Number of Noted Dissents	-0.002	(0.00)		-0.002	(0.00)		-0.002	(0.00)	
Constant	-0.008	(0.00)		-0.008	(0.01)		-0.008	(0.00)	

*** $p < 0.001$; ** $p < 0.01$; * $p < 0.05$
Dependent Variable = Tweet Sentiment Positivity (Naïve Bayes)
N = 119,369 Tweets
Model Header Indicates Clustering Term(s)

Verified status on the Twitter platform serves as a cue of elite status. Though the term *elite* can enjoy several definitions – including celebrities, activists, academics, politicians, or

other accounts who "represent or [are] otherwise…associated with a prominently recognized individual or brand, in line with the [platform's] notability criteria," it would be reasonable to expect that verified users engaging in such a niche political discourse would represent a common classification of users. Namely, we expected that these users would most commonly be academics, politicians, or those affiliated with popular media outlets. Indeed, our user population reinforced these expectations as seen in Figure 4.

Figure 4. Distribution of Verified User Occupations by Ideological Preferences

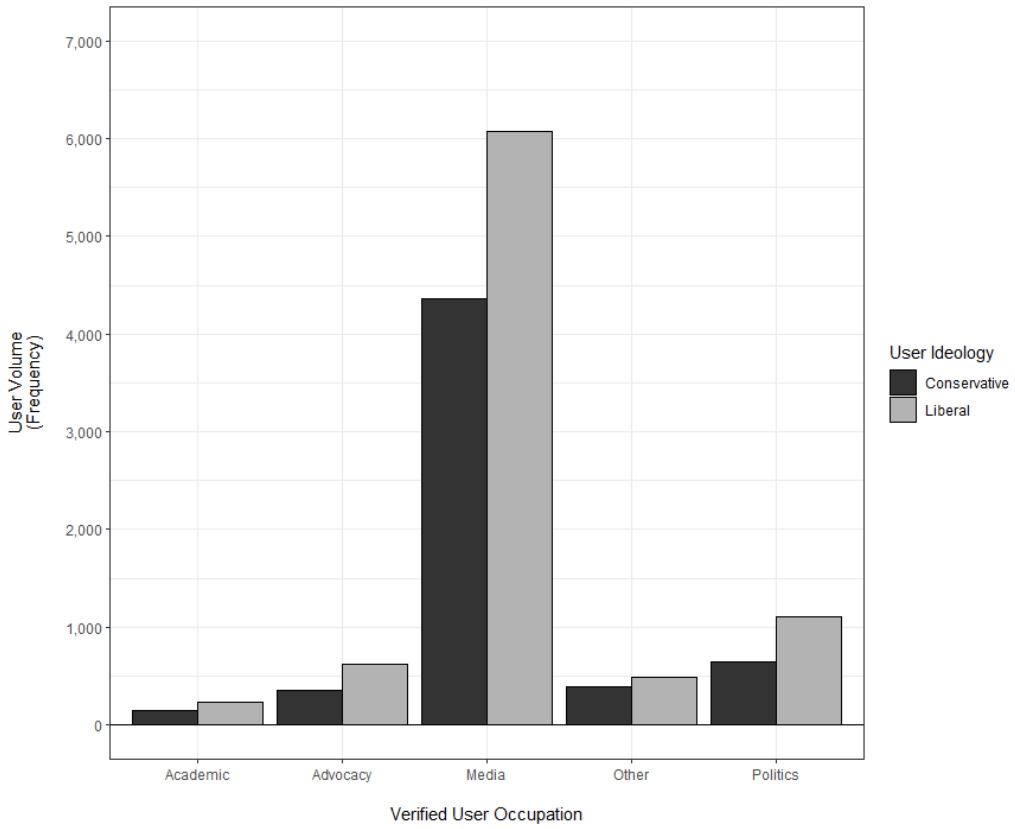

Figure 4 shows the distribution of conservative and liberal verified users across different occupations.

However, with respect to our theoretical expectations concerning verified users' rhetorical behaviors, we observe competing dynamics that cause us to question whether these users behave differently from non-verified users. Our concerns emerge from two trends observed

in the data. First, if verified status truly served as a major explanatory factor, then we would surely observe discernable differences in their rhetorical behaviors compared to non-verified users. Yet, apart from the obvious differences in the volume of tweets, the clustering of measured rhetoric is practically indistinguishable between the groups. We illustrate the groups' rhetorical behaviors in Figure 5 reflective of their measured ideological preferences, verified status, and the ideological preference of the order(s) emerging from the Court's shadow docket. Second, while our results indicate significant propensities for positive rhetoric aggregately among verified users, we find contrasting effects when they are measured as ideologically liberal. Viewed through this lens, we find an emerging pattern of users, regardless of their elite status, engaging in behaviors that are guided considerably by conditions of ideology.

Figure 5. Rhetorical Behaviors of Users by Verified Status & Order's Ideological Preference

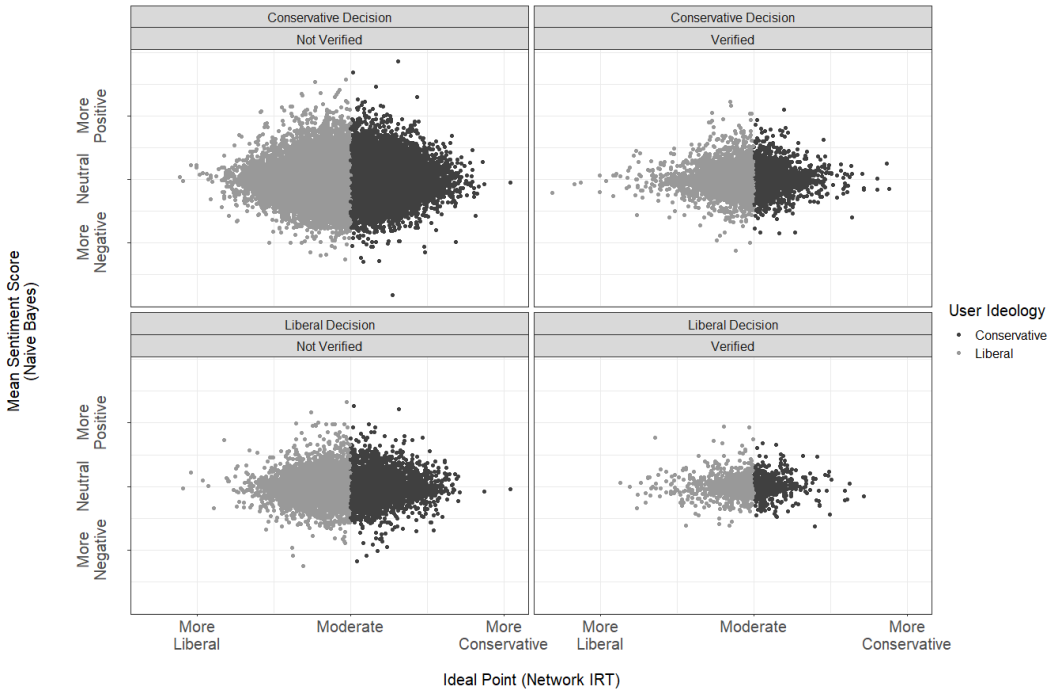

Figure 5 shows the rhetorical behaviors of users based on ideology and verified status. Upper left shows the distribution of non- verified users responding to a conservative decision. Upper right, the distribution of verified users responding to a conservative decision. The lower sections correspond to non- verified and verified users responding respectively to a liberal decision. User ideology is demonstrated by color with the darker color indicating a liberal user and a lighter color indicating a conservative user.

However, our results pertaining to the ideological preferences of users reveal an interesting dichotomy. Namely, we find a consistent and significant trend of opposition from liberal users irrespective of the ideological leaning of the Court's shadow docket order. In effect, liberally leaning users appear predisposed to post opposition rhetoric. However, this finding requires additional context. Among the 114 orders released during our observation period, only 43 could be construed as non-Conservative leaning, insofar as the recorded dissents of the Court's conservatives outweighed the liberals. This effectively produces an environment where liberal users were exposed to oppositional decision-making approximately two-thirds of the time – surely reinforcing their displeasure with the outcomes.

Indeed, analyses of the rhetoric incorporated within the observed tweets diminish the expectation that the coinciding discourse online consistently centers on procedure-related critiques. We find that observed tweets potentially incorporate terms inferring procedure-related critiques, such as the term *transparency*,[14] does little to explain the variation in rhetorical behaviors. We provide the distribution and the total number of observations for a sample of key terms related to shadow docket procedures – i.e., *shadow* and *transparency* – and opposition – i.e., *alarm, concern,* and *worry*. The inclusion of these terms, which we would expect to be frequent among negative rhetorical behaviors, appears to relay only a negligible effect if any effect at all in Figure 6.

[14] Note: This includes terms like *transparent*, *transparency*, and others built from the stemmed term *transpar*.

Figure 6. Variation in Rhetorical Sentiments by Opposition and Procedural Keywords

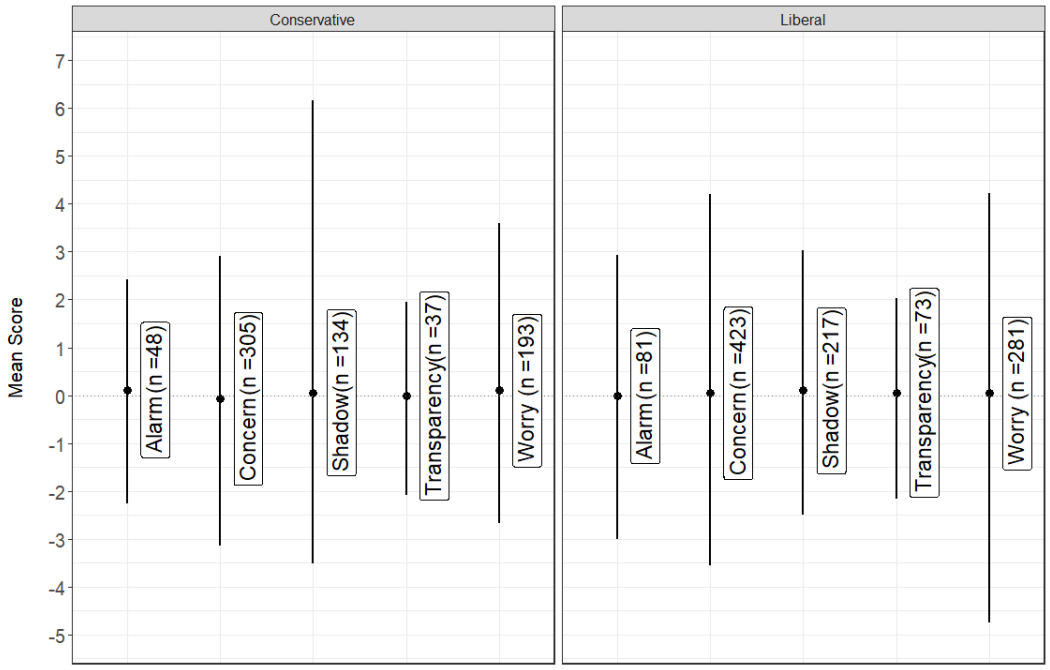

Figure 6 demonstrates the variation in rhetorical sentiments for Conservative and Liberal users across select key works.

Viewed holistically, we observe a common theme among users to express support or opposition reflective of preconceived ideological biases, rather than as the result of their positions on the Court's usage of the shadow docket itself. To bolster this conclusion, we draw attention to a Latent Dirichlet Allocation (LDA) model in Figure 7. The model considers the common topics observed in the dataset of user tweets. Doing so reinforces our expectations as the ten most common themes all appear to reflect discussions concerning conceptual or case-specific issues discussed in the Court's emergency orders, as opposed to topics directly focusing on opposition to the process itself. However, a potential outlier might be topic three, which appears to center on the nomination of Judge Ketanji Brown Jackson in March 2022.

Figure 7. LDA Topic Model

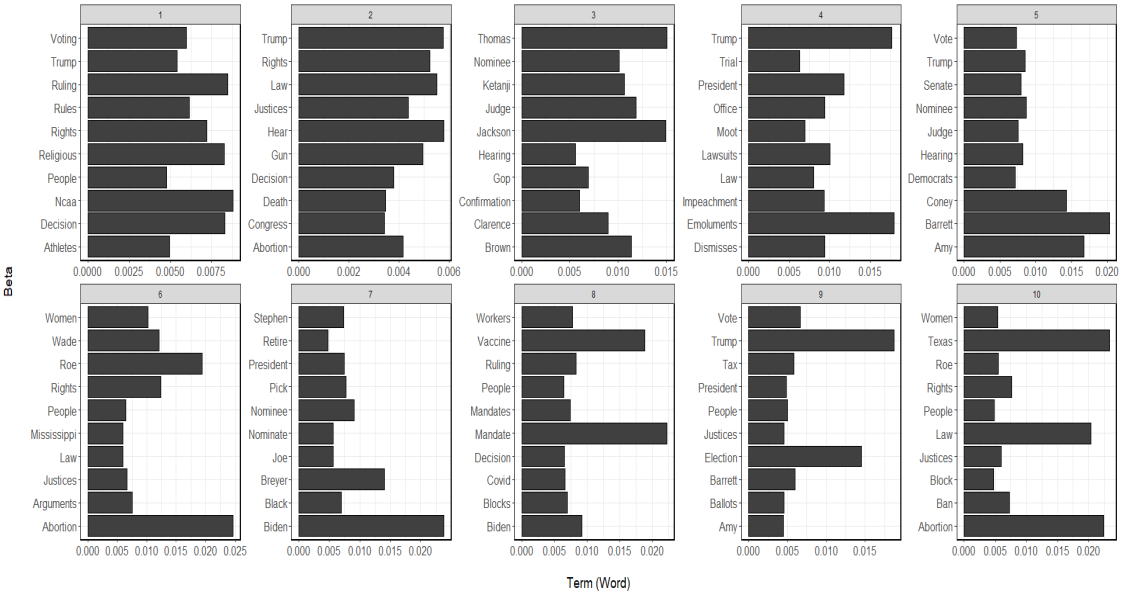

Figure 7 displays the top 10 topics discussed in the Tweets, as well as the frequency of the top 10 words in each topic on the left of every graph.

We draw this distinction based on contextual knowledge introduced at the onset of this article, which directly noted a set of interactions between Judge Brown and members of the Senate Judiciary Committee concerning the shadow docket. Senator Amy Klobuchar, whose questioning period occurred only one hour following the Court's controversial order to reject new Congressional district maps in Wisconsin, directly stated, "The Court's increasing practice of using the shadow docket to decide cases that have grave consequences for our democracy, including the right to vote…is incredibly troubling."

However, this procedure-based topical association does not appear to underscore a broader theme in the observation set. Instead, issue-based terms appear to constitute the remaining topics. Clear distinctions can be found in topics six and ten, both appear to reinforce online discourse related to the Court's pre-certiorari orders in *Whole Women's Health v. Jackson* (2022) and other abortion-related decision-making. Granted, deriving substantive connotations for the remaining topics is difficult, but the indicative trend appears to be focusing on conceptual

and other case-related issues, rather than procedural support or opposition for the shadow docket itself.

Discussion

Recent legal scholarship has increasingly drawn attention to the Court's emergency orders docket (a portion of the *shadow docket*) as a procedural quagmire (e.g., Baude 2015; Vladeck 2019, 2020). While the public's awareness of these unique decisions is just now reaching mainstream political discourse, the emergence of the shadow docket as a practical and routine alternative to the justices' traditional decision-making introduces the potential for procedural critiques that further dampen support for the Court. The justifications offered by the justices as a means to mitigate transparency concerns have generally hinged on dispositions and accompanying opinions being freely available to the public (e.g., Rehnquist 1976). Studies have yet to fully analyze whether the shadow docket emboldens public criticism in response to decisions that overtly shirk the Court's baseline for transparency.

Our work translated conventional theories of public support and opposition structures to the Supreme Court by analyzing discourse on Twitter in periods coinciding with unique orders and summary judgments emanating from the shadow docket. Owing to the prior literature (e.g., Caldeira and Gibson 1992; Gibson and Nelson 2015), we expected that procedural critiques would emerge among dissatisfied Twitter users whose ideological preferences did not align with the Court's decision-making. To test this, we incorporated data mining, supervised machine learning, and ideal point estimation strategies to observe the rhetorical behaviors of ideologically driven users discussing shadow docket orders. Our results ultimately dissuade us from this belief and instead reaffirm the importance of ideological congruity as the primary mediator of support

or opposition to the Court's decision-making. Even if decisions from the shadow docket represent a deviation from the Court's norms, procedural critiques are few and far between.

Instead, we find a consistent trend of users being motivated by their predisposed ideological beliefs and their congruence with the decisions themselves. As expected, liberal-leaning users responding to the docket's disproportionate favoring of the conservative justices routinely garnered greater rhetorical negativity. Regardless of the modeling strategy, we failed to locate any discernable evidence that public discourse is generally moderated by transparency concerns. Instead, topical analyses of the online discourse routinely point us to substantive social and political discussions of the issues, rather than the process itself. This leads us to conclude that while the shadow docket represents a considerable deviation from the Court's traditional procedures and potentially heightens transparency concerns, these sentiments rarely translate to public discourse online.

Though this work faces theoretical limitations due to the limited volume of decisions reached via the shadow docket, we hope that it serves as a foundation to further explore the residual impacts of the process, as well as a framework for the incorporation of social media as a reliable avenue for observing political discourse. At the core of contemporary legal scholarship devoted to the shadow docket is the recognition that the justices continue to become increasingly reliant on this process. Vladeck (2019) aptly illustrates that this is especially the case when the justices are facing important policy disputes that would otherwise require an extended appellate process before the Court would usually intercede. Continued reliance on this procedural avenue will surely provide more data to analyze in the future. Further, although our results do not observe discernable degrees of procedural critiques in the responding discourse, it is entirely possible that this could reasonably change. Our inferences are rooted in the belief that the public

generally views the Court's decision-making through an ideological lens, but we must also recognize that public knowledge and awareness of the shadow docket is considerably limited. It is entirely plausible that continuing to issue controversial emergency orders in the absence of the already-limited sense of transparency provided by the Court could instigate a broader awareness of the shadow docket.

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